

2.	25CV1681	JASON COLARUSSO VS. GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY
MOTION TO DETERMINE THE AMOUNT OF REASONABLE ATTORNEY'S FEES, COSTS AND EXPENSES TO BE PAID BY DEFENDANT		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

On June 24, 2026, Plaintiff, Jason Colarusso ("Plaintiff"), filed a Motion to Determine the Amount of Reasonable Attorney's Fees, Costs and Expenses to be Paid by Defendant. An Opposition was filed by Defendant, General Motors LLC ("Defendant"), on July 27, 2026.

The Parties entered into settlement agreement on May 29, 2026, on the merits of the matter, whereby Plaintiff agreed to dismiss the action against Defendant in exchange for the repurchase of the subject vehicle, plus Plaintiff's reasonable attorney's fees, costs, and expenses. The settlement provides that, "[r]easonable attorneys' fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion," and that "Plaintiff is the prevailing party for purposes of said fee motion."

Plaintiff seeks an award of \$24,463.00 attorney's fees, \$993.72 in costs and expenses, for a total of \$25,456.72. The amounts claimed include:

- 1 hour at \$945/hour for Jon Jacobs
- 28 hours at \$495/hour for Christine Morano
- 28.5 hours at \$250/hour for paralegal time
- 5 hours at \$495/hour for additional wrap up fees

Reasonable Rate and Retroactivity

Ms. Morano's declaration provides that she was admitted to the California State Bar in May 2024 and assumed the role of Senior Attorney on January 1, 2026. Her current hourly rate is \$495/hour. Prior to assuming her new role and fee rate, Plaintiff's counsel indicates that her rate at \$450/hour was approved by multiple California courts, including this court. Ms. Morano indicates Jon Jacobs is the owner of the Law Offices of Jon Jacobs, was admitted to the California State Bar in December 1999, and has handled over 2,000 Lemon Law cases while practicing consumer law his entire career and exclusively "lemon law" since 2003. All paralegals charge \$250/hour.

Defendant argues that on February 26, 2026, this Court determined Plaintiff's counsel's hourly rates were reasonable at \$850/hour for Jon Jacobs and \$450/hour for Christine Morano,

and \$250/hour for paralegals (Case No. 25CV0626), yet now seeks a 10% increase with no meaningful explanation why such a significant increase over such a short period of time is reasonable or justified. Additionally, Defendant argues that Ms. Morano has just recently completed her second full year of practice and by gaining a title of “Senior Attorney” does not justify an elevated billing rate. Defendant requests the court reduce the hourly rates to \$550 for Attorney Jacobs, \$300 for Attorney Morano, and \$150 for paralegals. In the alternative, Defendant requests the Court to adhere to the rates it approved less than six months ago—\$850 for Attorney Jacobs, \$450 for Attorney Morano, and \$250 for paralegals.

Plaintiff further requests the Court apply her \$495/hour rate to all compensable time incurred in the matter. Defendant argues that Plaintiff’s request to retroactively apply the increased rates to work performed in both 2025 and 2026 is unsupported.

A trial court is also justified in reducing a claim if it believes the billing is unjustly inflated. (*Center for Biological Diversity v. County of San Bernardino*, *supra*, 188 Cal.App.4th at p. 616, 115 Cal.Rptr.3d 762.) Because the “ ‘ ‘experienced trial judge is the best judge of the value of professional services rendered in his court,’ ” the trial court has broad discretion to adjust a fee downward if it determines the fee is unreasonable. (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1132, 104 Cal.Rptr.2d 377, 17 P.3d 735.) *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1186.0

The Court is unpersuaded that a 10% increase in hourly fee rates for both attorneys without justification aside from Ms. Morano’s promotion to “Senior Attorney” is reasonable. The mere passage of a few months from this Court’s previous ruling in February 2026 without meaningful evidence of changed market conditions, increased skill, difference in novelty, or difficulty of the issues does not support a finding that the rate increase is reasonable.

Plaintiff’s reliance on *Robles v. Employment Dev. Dep’t* (2019) 38 Cal.App.5th 191, 205 for her request that her current hourly rate of \$495 should be applied to all compensable time incurred is flawed. In *Robles*, the court ordered that current prevailing hourly rates should be used due to the lengthy delay in obtaining a fee award, which spanned nearly a decade. *Id.* Here, the Complaint was filed on June 30, 2025, and a settlement was reached on May 29, 2026, less than a year later - vastly distinct from *Robles*.

The Court finds that the reasonable hourly fee rate is \$850 for Jon Jacobs, \$450 for Christine Morano, and \$250 for paralegals and reduces the fee award to be consistent with these rates.

Number of Hours Claimed

Plaintiff identified 57.9 hours of work spent by attorneys and paralegals in the matter. In addition, Plaintiff seeks an additional 5 hours’ worth of fees for “additional wrap up,” for a total of 62.9 hours.

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Defendant argues the requested fees must be reduced because Plaintiff's counsel and paralegals billed excessive time for numerous routine tasks, double billed, and billed at attorney rates for work that should have been performed by paralegals, resulting in further overcharges.

The Court has reviewed the billing statements provided by Plaintiff and has made the following reductions:

- The Court agrees that 96 paralegal .2 entries could be reduced to .1 hours for a total reduction of 9.6 hours (\$2,400).
- The Court agrees that 5 paralegal .3 entries could be reduced to .1 hours for a total reduction of 1 hour (\$250).
- The Court agrees that 2 paralegal .3 entries are duplicative and could be reduced to 1 paralegal .1 entry for a total reduction of .3 hours (\$75).
- The Court agrees that 6 paralegal .2 entries are duplicative and could be reduced to 3 paralegal .1 entries for a total reduction of .6 hours (\$150).
- The Court agrees that 33 Christine Moreno .2 entries at a rate of \$450/hour could be reduced to .1 hours for a total reduction of 3.3 hours (\$1,485).

The Court further agrees that the anticipated billing hours should be reduced to 4 hours at a rate of \$450/hour, for a reduction of \$450.

Accordingly, the Court orders Defendant to remit to Plaintiff attorney's fees in the amount of \$18,355, and costs and expenses in the amount of \$933.72, for a total of \$19,288.72, to be paid within 30 calendar days from the date of service of this order.

TENTATIVE RULING #2:

PLAINTIFF'S MOTION TO DETERMINE THE AMOUNT OF REASONABLE ATTORNEY'S FEES, COSTS AND EXPENSES TO BE PAID BY DEFENDANT IS GRANTED, AND THAT DEFENDANT SHALL REMIT TO PLAINTIFF ATTORNEY'S FEES IN THE AMOUNT OF \$18,355, AND COSTS AND EXPENSES IN THE AMOUNT OF \$933.72, FOR A TOTAL OF \$19,288.72, TO BE PAID WITHIN 30 CALENDAR DAYS FROM THE DATE OF SERVICE OF THIS ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

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LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.